



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 7, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202203788 (Incident Date: June 10, 2022) regarding Police Officer Olga Bentin,
Tax No. 968962 (DADS No. 2023-28766)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the single allegation that Police Officer Bentin improperly searched an individual.

In this matter, Police Officer Olga Bentin responded to a 911 assignment concerning an individual who was reported to have made threats to harm himself and was eventually determined to be an emotionally disturbed person (EDP). On previous occasions, the officer had dealt with the complainant as she tried to get him homeless services. On the incident date, it was determined that the individual should be transported to § 87(2)(b) for evaluation. Police Officer Bentin walked him to the ambulance; and, she frisked and eventually searched him before entering the ambulance. The search was undertaken to ensure the safety of both the individual and the ambulance crew.

Police Officer Bentin was interviewed five (5) months after the incident by CCRB investigators. She stated that she frisked the individual's pockets and felt hard objects, which she believed to be weapons. Due to the passage of time, it was reasonable that Police Officer Bentin could not remember the details of her frisk of all four (4) pockets. The officer did indicate that she felt a "hard, squared-shaped object" in either the inner or outer right pocket, which she believed to be a knife. The officer clearly indicated that the search occurred only after she felt something. Furthermore, the Officer's body-worn camera footage supports her statement, as it captures her entering each pocket only after she felt the jacket.

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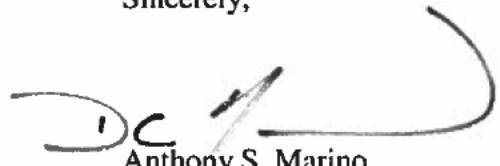
Website: <http://nyc.gov/nypd>

Furthermore, in this case, Police Officer Bentin was acting in compliance with the guidance provided by Patrol Guide Section No. 221-13 (Mentally Ill or Emotionally Disturbed Persons). An officer is allowed to remove property that is dangerous to life or will facilitate escape. In this case, the 911 call described an EDP who had slit or threatened to slit his wrist. To ensure safe transport, she checked the individual's pocket to ensure he did not have anything that would hurt anyone. This was necessary to ensure the safety of all on the scene.

Finally, the individual did not allege that an officer unlawfully searched him during the incident. During his CCRB interview, the individual stated that he had consented to the search so long as the officer's body camera would be on.

Therefore, based on the above, and the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Bentin for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters/Search).

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office